

Charity Registration Application

1

2

3

4

5

6

7

8

9

10

11

12

13

14

Introduction Excluded Main Purpose Public Classification The The Constitution Financial Safeguarding Further Data Declaration
Bodies Details Benefit Organisation People Info Protection

Introduction

Welcome to the Charities Regulator

Introduction

The Charities Regulatory Authority, also known as the Charities Regulator, is a statutory organisation, set up in October 2014, to regulate the charity sector. We have a number of functions, such as registering charities, and maintaining the Register of Charities. We also ensure that charities comply with their legal requirements, we carry out investigations into the affairs of charities and we issue guidelines and codes of conduct to assist charities.

Your organisation may use this form to submit an application to be considered for registration on the public register of charities. The form has several sections and you are required to complete each and upload the relevant documents where requested. Failure to complete this form in full will mean delays in the progression of your application. We will return incomplete forms.

The Registration Process

The registration process is a legal process. Your application will be assessed in line with the requirements of the Charities Act 2009 (the 'Act'). It is a necessarily robust one to ensure that Ireland has a vibrant, trusted charity sector that is valued for the public benefit that it provides. In this process your charitable organisation will need to demonstrate it has the ability to advance its charitable purpose or purposes. You will need to show that it has clear plans in relation to the activities that it intends to carry out to advance that purpose. You will need to provide information on the section of the public your charitable organisation will benefit and how it will do so.

On receipt of an application, we conduct an initial review to ensure that all the required documents have been provided. This first stage of the process is intended to ensure that you have provided the basic information and documentation that is required for further consideration of your application. Once we determine that you have provided a complete application, it then progresses to an in-depth assessment to determine whether your organisation meets the requirements to be registered in accordance with the Act. The application may be returned to you at any stage in the process for clarification or submission of further documents. The Act sets out the requirements that your organisation must meet to be considered a charity. We call this the 'charity test'.

The Charity Test

The Charities Act 2009 (the 'Act') sets out the requirements that your charitable organisation must meet to be considered a charity. We call this the 'charity test' and this can be summarised in the bullet points below:

- The charitable organisation must not be an excluded body, as defined in section 2(1) of the Act.
- The charitable organisation must operate in the State.
- The charitable organisation must have a charitable purpose(s) and must promote the charitable purpose(s) only.
- The constitution of the charitable organisation must require the organisation to apply all of its property (both real and personal) in furtherance of its charitable purpose(s).
- The charitable purpose being promoted must be of public benefit.

Helpful Guidance

Before you begin the registration process we recommend that you read [What is a Charity](#) and our [Registration Guidelines](#)

Pre-Application Checklist

Before commencing any activities or submitting an application to register, the following list explains what you should read, understand and prepare:

- ☐ Have you read our [Registration Guidelines](#)?
- ☐ Have you read the section on excluded bodies? Are you an excluded body?
- ☐ Do you know what the organisation structure will be?
- ☐ Have you drafted your constitution? And do you understand what needs to be included by reading our model constitutions for [Companies Limited by Guarantee](#) and [Unincorporated Associations](#)?
- ☐ Do you understand your charitable purpose and have you read [What is a Charity](#)?
- ☐ Do you know what activities the charitable organisation carries out and intends to carry out to further its charitable purpose(s)?
- ☐ Have you read [Guidance for Charity Trustees](#)? Do you have three or more trustees and is the board balanced?
- ☐ Do you understand conflict of interest and have you read the [Guidance for Charity Trustees](#)?
- ☐ Have you read [Safeguarding Guidance for Charitable Organisations working with Children](#)?
- ☐ Have you read [Safeguarding Guidance for Charitable Organisations working with Vulnerable Persons \(Adults\)](#)?
- ☐ Do you know your objectives to advance your charitable purpose for the next 24 months?
- ☐ Do you know how the charitable organisation raises and proposes to raise funds?
- ☐ Do you have details of the number of staff and volunteers?
- ☐ Do you know the amount of any funds raised by the charitable organisation during the 12 months immediately preceding the application?
- ☐ Do you have the particulars of all bank and credit union accounts of the charitable organisation?
- ☐ Do you know the name of each charity trustee and the addresses at which they ordinarily reside?

Important Information

We understand that having a Registered Charity Number or 'RCN' may assist an applicant in obtaining grants, opening bank accounts, and purchasing or leasing properties among others things. Please be aware that as the application process will take time, we recommend that any major decisions/ actions which are dependant on the applicant having a Registered Charity Number are not made/taken until such time as the organisation receives a decision on its application for registration.

Please note that registration is not guaranteed. You should not commence any fundraising activities until you are a registered charity.

Warning: The information supplied in this form will be carefully assessed. If you do not answer questions or answer questions incorrectly, or if you fail to upload any required documents, this form will be returned to you and this will delay assessment of your application for registration.

Warning: It is a criminal offence under section 39(15) of the Act for a person to knowingly or recklessly provide false or misleading information to the Charities Regulator.

Please note that in becoming a registered charity you, as charity trustees, and the organisation are obliged to comply with the Act. Your obligations will include the keeping of a proper book of accounts, the submission of Annual Reports and compliance with the Charities Governance Code.

[Back to Top](#)

Welcome to the Charities Regulator

Introduction

The Registration Process

The Charity Test

Helpful Guidance

Pre-Application Checklist

Important Information

Save Draft

Next